

26STCV00556 26STCV00556

County: los-angeles

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Case Number: 26STCV00556 Hearing Date: August 25, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Michael Verdugo

;

Plaintiff,

vs.

Richard meng

, et al.,

Defendants.

Case No.:

26STCV00556

Hearing Date:

August 25, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Defendants'

Special Motion to Strike Complaint

MOVING PARTY: Defendants Richard Meng and Vivian

Meng

RESPONDING

PARTY: Plaintiff Michael Verdugo

Special Motion to

Strike Complaint

The court considered the moving and

reply papers filed in connection with this motion. The court also exercises its

discretion to consider the late-filed opposition papers filed August 13, 2026.

REQUEST

FOR JUDICIAL NOTICE

The court grants

defendants Richard and Vivian Meng's requests for judicial notice pursuant to

section 452, subdivision (d) of the Evidence Code.

The court grants

plaintiff Michael Verdugo's requests for judicial pursuant to section 452,

subdivision (d) of the Evidence Code.

LEGAL STANDARD

"The anti-SLAPP

procedures are designed to shield a defendant's constitutionally protected

conduct from the undue burden of frivolous litigation." (Baral v. Schnitt (2016)

1 Cal.5th 376, 393.)

"The

anti-SLAPP statute does not insulate defendants from any liability for claims

arising from the protected rights of petition or speech. It only provides a procedure

for weeding out, at an early stage, meritless claims arising from protected

activity."

(Id. at p. 384.) "Resolution of an anti-SLAPP motion involves two steps. First, the defendant must

establish that the challenged claim arises from activity protected by section

425.16. If the

defendant makes the required showing, the burden shifts to the plaintiff to

demonstrate the merit of the claim by establishing a probability of success." (Ibid. [citation

omitted].) The

California Supreme Court has “described this second step as a ‘summary-judgment-like procedure.’” The court does not weigh

evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff

has stated a legally sufficient claim and made a prima facie factual showing

sufficient to sustain a favorable judgment. It accepts the plaintiff’s evidence as true, and

evaluates the defendant’s showing only to determine if it defeats the

plaintiff’s

claim as a matter of law.

‘[C]laims

with the requisite minimal merit may proceed.’” (Id. at pp. 384-385

[citations omitted].)~~~~~

DISCUSSION

Defendants

Richard and Vivian Meng (“Defendants”) move the court for an order striking the

Complaint for malicious prosecution in this action filed by plaintiff Michael

Verdugo (“Plaintiff”) pursuant to Code of Civil Procedure section 425.16, also

known as the anti-SLAPP (“strategic lawsuit against public participation”)

statute.

1.

First

Prong: Protected Activity

The court finds

that Defendants have met their burden to show that the allegations in the

Complaint arise from protected activity. (Code Civ. Proc., § 425.16, subd.

(b)(1).)

“Initially, the

moving defendant bears the burden of establishing that the challenged

allegations or claims ‘aris[e] from’ protected activity in which the defendant

has engaged.”² (Park

v. Board of Trustees of California State University (2017) 2 Cal.5th 1057,

1061.)³ “[T]he statutory phrase ‘cause of action...arising from’ means simply that the defendant’s act underlying the plaintiff’s cause of action must itself

have been an act in furtherance of the right of petition or free speech.”⁴ [Citation.]⁵ In the anti-SLAPP context, the

critical point is whether the plaintiff’s cause of action itself was based on

an act in furtherance of the defendant’s right of petition or free speech.”⁶ (City of Cotati v. Cashman

(2002) 29 Cal.4th 69, 78.)

The sole cause of

action alleged in the Complaint is for malicious prosecution in bringing the

action entitled Meng, et al v. Mays, et al. Case No. 19STCV21850 in the

Superior Court for the County of Los Angeles. (Complaint ¶¶ 4-10.) These

allegations pertain on their face to writings made before a judicial proceeding

and to writings made in connection with an issue under consideration or review

by a judicial body. (Code Civ. Proc., § 425.16, subd. (e)(1)-(2).) For that

reason, the court finds that Defendants have met their burden to demonstrate

that the sole cause of action arises from acts in furtherance of Defendants'

right of petition.

2.

Second

Prong: Probability of Success

The second prong

places the burden on the plaintiff to establish that there is a probability of

prevailing on the challenged claim.¿

(Code Civ. Proc., § 425.16, subd. (b)(1).)¿ To satisfy this burden, the

plaintiff must show that the challenged claim is both legally sufficient and

supported by a prima facie showing of facts to sustain a favorable judgment.¿ (Oliveras v. Pineda

(2019) 40 Cal.App.5th 343, 353.)¿

"This

is a '

"summary-judgment-like

procedure." '¿ [Citation.]¿

The pleadings and evidentiary submissions of both parties are considered

[citation], and the evidence favorable to plaintiffs is accepted as true.” [Citation.] Plaintiffs need only establish that their claim has “minimal merit” to avoid being stricken as a SLAPP.” (Ibid. [internal citations omitted].)

To prevail on a

claim for malicious prosecution, a plaintiff must prove that the underlying

action was (1) terminated in the plaintiff’s favor; (2) prosecuted without

probable cause; and (3) initiated with malice. (Franklin Mint Co. v. Manatt,

Phelps Phillips, LLP (2010) 184 Cal.App.4th 313, 333.)

The court finds

that Plaintiff has not met his burden to establish there is a probability that

Plaintiff will prevail on his claim for malicious prosecution because he has not

shown that Defendants prosecuted their action against him (1) without probable

cause and (2) with malice against him. (Code Civ. Proc., § 425.16, subd.

(b)(1).)

“[T]he probable

cause element calls on the trial court to make an objective determination of

the ‘reasonableness’ of the defendant’s conduct, i.e., to determine whether, on

the basis of the facts known to the defendant, the institution of the prior

action was legally tenable. The resolution of that question of law calls for

the application of an objective standard to the facts on which the defendant

acted.” (Sheldon Appel Co. v. Albert & Olier (1989) 47 Cal.3d 863,
878.)

Plaintiff

presents no evidence tending to establish that Defendants lacked probable cause
in pursuing the underlying action against Plaintiff. A contention that the
testimony elicited at trial undercut the Defendants’ claims and resulted in a
complete victory for the defense is not itself evidence of lack of probable
cause, because it does not bear upon the objective reasonableness of
Defendants’ actions. The court’s Statement of Decision also does not prove that
Defendants were objectively unreasonable in prosecuting or maintaining the
action against Plaintiff.

More importantly,

Plaintiff’s opposition entirely fails to address the third element of malicious
prosecution: malice. Plaintiff therefore fails to present a prima facie showing
of facts sufficient to sustain a favorable judgment, and thus has not met his
burden to establish a probability that Plaintiff will prevail on his claim for malicious
prosecution.

For the reasons set

forth above, the court grants Defendants’ special motion to strike.

ORDER

The court GRANTS

defendants Richard Meng and Vivian Meng's special motion to strike the

Complaint.

The court orders

that the Complaint filed by plaintiff Michael Verdugo is stricken as to

defendants Richard Meng and Vivian Meng without leave to amend pursuant to Code

of Civil Procedure section 425.16.

The court orders

that defendants Richard Meng and Vivian Meng are dismissed from this action.

The court orders

that defendants Richard and Vivian Meng are entitled to recover reasonable

attorney's fees and costs in connection with this motion pursuant to Code of

Civil Procedure section 425.16, subdivision (c)(1). Reasonable fees and costs

shall be determined by a procedurally proper and regularly-noticed motion.

The court orders defendants

Richard Meng and Vivian Meng to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 25, 2026

Robert B. Broadbelt III

Judge of the Superior Court